

Vankadaru Jyothiratna Sowdamini vs Vankadaru Rama Krishna on 3 February, 2020

Author: M. Venkata Ramana

Bench: M. Venkata Ramana

MVR, J
C.R.P.No.190 of 2019

1

HON'BLE SRI JUSTICE M. VENKATA RAMANA

C.R.P.No.190 of 2019

ORDER:

This Civil Revision Petition is directed against order in I.A.No.1644 of 2018 in O.P.No.7 of 2018 dated 04.10.2018 on the file of the Court of learned Additional Senior Civil Judge, Eluru.

2. The petitioner is the wife of the respondent.

3. The respondent instituted a petition under Section 13(1)(ia)(ib) of Hindu Marriage Act against the petitioner for dissolution of their marriage celebrated on 21.03.2008 on the ground of cruelty and desertion. They have a son-Dheeraj, about 11 years old and a daughter-Bhavya Deedpriya, about 7 years old respectively, born out of this marriage. The respondent is a practising advocate at Sattupalli, Khammam district in State of Telangana. Whereas, the petitioner is now staying with her father at Tadepalligudem along with the children.

4. In the course of enquiry in the main divorce petition, the respondent filed I.A.No.1644 of 2018 under Order 6 Rule 17 CPC and Section 151 CPC as well as Rule 28 of Civil Rules of Practice to amend the petition setting out the ground of alleged adultery against the petitioner.

5. The reason assigned by him in making such a request for amendment was that there was a settlement between himself and the petitioner, to have divorce by mutual consent, which made him to file a formal application for divorce. However, according to the respondent, the conduct of the petitioner was not fair and who did not abide by the decision of the elders. He further alleged that the petitioner prepared herself to contest the divorce petition and therefore, in order to bring real facts as to what happened in their matrimonial life, he intended to amend the petition to set out such pleadings.

MVR,J

6. The petitioner filed a counter opposing the petition denying these allegations and the alleged

ground of adultery attributed to her. In her detailed counter, she stated that the proposed amendment would alter the nature and character of the main divorce petition and even otherwise without making the alleged adulterer as a party to the main petition, it cannot be maintained. Stating that the amendment as proposed lacks bonafides, which sets out a different cause of action altogether violating Order 2 CPC and vehemently denying the alleged reason, she requested to dismiss the petition.

7. Learned trial Judge upon hearing parties and considering the material, allowed the proposed amendment mainly on the ground that enquiry has not commenced in the main O.P. and accepting the reasons assigned by the respondent. It was further observed that the alleged addition of the adulterer could be looked into in the course of enquiry in the main petition; that the proposed amendment would not cause prejudice to the petitioner and that it would not change the nature of the main petition.

8. Sri K.S.Murthy, learned counsel for the petitioner strenuously contended that learned trial Judge has misdirected himself without applying proper parameters in considering application for the amendment filed by the respondent. It is further contended that the proposed amendment is setting up a new ground altogether changing the very character and nature of the main divorce petition. Thus, it is stated that there is a complete departure by the respondent from his original pleadings, which is impermissible in law and when he being a practising advocate, it cannot be expected that he would have remained quiet without setting up such plea in the main petition initially. It is further contended that learned trial Judge considered the nature of amendment MVR,J referring to the allegations therein, touching upon the merits of the proposed amendment, which course is clearly impressible. Thus, mainly stating and that the proposed amendment would drastically affect the defence of the petitioner, it is requested to allow this revision petition.

9. Sri P.V.Venkata Ravi Sankar, learned counsel for the respondent supported the order under revision stating that the attempt of the respondent is only to bring to the notice of the Court as to the real matter in dispute and the conduct of the petitioner. For such purpose, according to the contention of the learned counsel, the respondent intended to lay foundation in the pleadings and which was rightly considered by the trial Court having regard to the stage of the matter at which the main divorce petition now rests. Thus stating, learned counsel requested not to interfere with the order under revision.

10. Now, the point for determination is: - "Whether the amendment sought by the respondent of the counter is permissible and if the order of the trial Court is justified?"

11. The respondent is a practising advocate at Sattupalli in Khammam District of State of Telangana. His very position as an advocate gives rise to an impression that he knew the grounds on which he requires divorce against the petitioner. It cannot be stated that the petition earlier presented by him was casual, which did not provide for material particulars. Knowing full well the basis and foundation on which he wants to pursue the action against the respondent on the grounds of cruelty as well as desertion, he laid the petition.

12. Now, surprisingly he wants to introduce an element of alleged un- chastity attributed to his wife and adulterous conduct. The allegation so set up by the respondent is so serious and causing damage to the interest of the petitioner, that the respondent could not have ignored such plea. As MVR,J rightly contended for the petitioner, this ground proposed by means of the amendment, introduces a new cause adversely affecting the petitioner. In a way, it can be taken that the respondent has attempted to dilute his earlier claim against the petitioner and thus, tried to project altogether a new version. Certainly, the proposed amendment changes the nature and character of the defence set up by the respondent causing any amount of prejudice to the case of the petitioner.

13. Therefore, in the above circumstances, the proposed amendment could not have been permitted by the learned trial Judge. The reasons assigned by the learned trial Judge in the process of allowing this amendment are not acceptable and only ground on which it was allowed was that no prejudice would be caused to the respondent and that the enquiry in the matter has not commenced as yet. Finding no justification to infer in such manner in given facts and circumstances of the case, the complaint of the petitioner against the order under revision has to be sustained. Therefore, for the above reasons, the order under revision has to be set aside finding that there is improper application of law, which has lead to miscarriage of justice, warranting interference by this Court.

14. In the result, the Civil Revision Petition is allowed. Consequently, the order in I.A.No.1644 of 2018 in O.P.No.7 of 2018 dated 04.10.2018 on the file of the Court of learned Additional Senior Civil Judge, Eluru, is set aside. There shall be no order as to costs. All pending petitions, stand closed. Interim order, if any, stands vacated.

M. VENKATA RAMANA, J Dt:03.02.2020 Rns MVR,J HON'BLE SRI
JUSTICE M. VENKATA RAMANA Date:03.02.2020 Rns MVR,J